

## 22STCV06081 22STCV06081

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-06-24

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C224%2C06%2F24%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C06%2F24%2F2026)

Source SHA-256: 973e5e08503da611360af4cf4e1259d21c6f79306bc6e55634e976fe9ffb0b12

Case Number: 22STCV06081 Hearing Date: June 24, 2026 Dept: 224

Pitt et al., v. Jolie et al.,

### TENTATIVE RULING

Plaintiffs' Motions to Compel Deposition of Nouvel, LLC's Person Most Qualified and Tenute Del Mondo B.V.'s Person Most Qualified, and Alexey Oliynik are GRANTED in part and DENIED in part.

By no later than August 7, 2026, Defendants shall provide Plaintiffs with dates on which Ms. Troyanovskaya and Mr. Oliynik will each be available for three consecutive days of deposition to occur before September 30, 2026. Each witness shall be produced for a minimum of 18 hours of deposition testimony, exclusive of lunch and other reasonable breaks. Of the 18 hours, a maximum of 7 hours shall be allocated to the deposition of the witness in his or her party-affiliate capacity with the remainder of the unused time allocated to PMQ testimony.

By July 21, 2026, Mr. Oliynik will confirm whether he will be available for deposition in September. If he is not, by August 7, 2026, Nouvel and Tenute will need to provide dates for deposition prior to October 30, 2026. If he is unable to comply with this order, a motion for protective order must be filed immediately if after conferring with Plaintiffs' counsel, an agreement on accommodations can not be reached. Ms. Troyanovskaya's deposition needs to occur prior to September 30, 2026, absent stipulation of the parties.

Once the dates are set, the depositions shall take place in London, at an office location selected by Plaintiffs and identified in the deposition notices.

Tenute and Nouvel must produce all non-privileged documents responsive to the document demands in the Oliynik Deposition Notice and Requests for Production of Documents Nos. 1-13, by August 7, 2026. To the extent any documents are withheld on the basis of privilege, a privilege log must be produced on August 7, 2026.

Plaintiffs' Requests for Sanctions are DENIED.

### ANALYSIS

#### I. Background

On April 9, 2025, Plaintiffs served Tenute with a Notice of Deposition of Tenute's Person(s) Most Qualified pursuant to California Code of Civil Procedure Sections 2025.010 and 2025. 230. (Tenute Cherlow Decl., Ex. 1.) The Notice described 27 topics and set the deposition to occur in California. Nouvel served its objections on April 29, 2025.

On April 9, 2025, Plaintiffs served Nouvel with a Notice of Deposition Nouvel, LLC's Person(s) Most Qualified pursuant to California Code of Civil Procedure Sections 2025. 010 and 2025. 230. (Nouvel Cherlow Decl., Ex. 1.) The Notice Described 36 topics, and set the deposition to occur in California. Nouvel Served its objections to Plaintiffs' Notice on April 29, 2025.

On April 9, 2025, Plaintiffs served Alexey Oliynik with a Notice of Deposition of Alexey Oliynik with requests for production of documents. (Cherlow Decl., Ex. 1.) The deposition was noticed to occur by Zoom and included 12 document demands. (Cherlow Decl., Ex. 1, pp. 15-17.) Nouvel served its objections on April 29, 2025.

On June 30, 2025, Plaintiffs filed their Motions to Compel Depositions of Nouvel, LLC's Person Most Qualified and Tenute Del Mondo B.V.'s Person Most Qualified.

On May 14, 2026, the Court held an informal discovery conference. (Minute Order 5/14/26.)

On June 9, 2026, Defendants and Cross-Complainants Nouvel, LLC and Tenute Del Mondo B.V. filed a joint opposition to Plaintiff's motion to compel. On June 10, 2026, Defendants and Cross-Complainants Nouvel, LLC and Tenute Del Mondo B.V. filed an opposition to the motion to compel the deposition of Alexey Oliynik.

On June 15, 2026, Plaintiffs filed two separate replies in support of the PMQ motions. On June 16, 2026, Plaintiffs replied to the opposition to the Oliynik motion.

## II. Legal Standards

"Any party may obtain discovery . . . by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc. § 2025.010.)

### A. PMQ Depositions

If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent. (Code Civ. Proc., § 2025.230.)

Code of Civil Procedure § 2025.450(a) provides: "If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice."

Code of Civil Procedure §2025.450(b) provides:"A motion under subdivision (a) shall comply with both of the following:

The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance."

Code of Civil Procedure § 2025.450(c) provides, "(1) If a motion under subdivision (a) is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Code of Civil Procedure § 2025.290(b)(5) expressly states that the seven-hour limit does not apply to any deposition of a person who is designated as the most qualified person to be deposed under § 2025.230.

#### B. Party-Affiliate Deposition

The service of a deposition notice is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying. (Code Civ. Proc., § 2025.280.) "Additionally ... the Civil Discovery Act ... provides a means for taking depositions of non-California residents in the state or country of their residence. Section...2027.010, provides for depositions in foreign nations." (Toyota Motor Corp. v. Superior Court (2011) 197 Cal.App.4th 1107, 1113, as modified (July 28, 2011).) Even while in a foreign nation, "the service of the deposition notice is effective to compel the deponent to attend, and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection, copying, testing, or sampling." Code Civ. Proc. § 2027.010(b). "[T]he procedures for taking oral depositions in California set forth in Chapter 9 (commencing with Section 2025.010) apply to an oral deposition taken in a foreign nation." (Code Civ. Proc. § 2027.010(a).)

#### C. Sanctions

California Civil Discovery Act § 2023.040 governs how sanctions must be requested. "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be ... accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.) The requirement applies to all requests for discovery sanctions, including motions to compel depositions of persons most qualified.

#### III. Meet and Confer

The parties have met and conferred, including by participating in an informal discovery conference on May 14, 2026.

#### IV. Discussion

It is undisputed that the PMQs for Defendants Nouvel and Tenute Del Mondo have not appeared for deposition. Nor has Mr. Oliynik.

Plaintiffs seek a Court order that Tenute and Nouvel make their PMQs available by September 30, 2026, in California (though Plaintiffs are amenable to Paris), and on all topics included in the deposition notices. As to Mr. Oliynik, Plaintiffs move the court to order that Mr. Oliynik appear for deposition by date certain, at a fixed location with the documents requested in his deposition notice.

Defendants contend that they intend to produce PMQ witnesses as well as Mr. Oliynik subject to resolution of location, timing, and topic disagreements.

#### A. Location

As to location, Nouvel and Tenute agree to appear for depositions in Paris, France in September 2026. (Opp at 5:3-6.) Plaintiffs are willing to travel to Paris for these depositions, with some assurances. At oral argument, the parties represented they agreed to take the depositions in London. Accordingly, the Court orders that the depositions shall take place in London, at an office location selected by Plaintiffs and identified in the deposition notices.

The Court acknowledges that Plaintiffs would ordinarily be entitled to conduct the PMQ depositions in California. Nevertheless, in exercising its discretion to manage discovery, the Court has considered Plaintiffs' willingness to travel abroad to conduct the depositions, as well as the likelihood that requiring the witnesses to travel to California would generate additional disputes or logistical complications that could further delay completion of the depositions. The Court also notes that Defendants have agreed to produce Mr. Oliynik in Paris for deposition both in his individual capacity as a party-affiliated witness and in his capacity as a person most qualified, thereby eliminating the need for a separate remote deposition, or a court order compelling his travel to California for a PMQ deposition. Under these circumstances, requiring the depositions to proceed in London is the most efficient means of ensuring they are completed in a timely and orderly manner.

#### B. Designees and Deposition Time

Defendants have agreed to designate Ms. Marina Troyanovskaya and Mr. Alexey Oliynik as the persons most qualified across both deposition notices and to produce them both in their party-affiliate, and PMQ capacities. Plaintiffs do not appear to disagree with this proposal, provided the deposition dates are certain, and the location is fixed.

The Court therefore orders Mr. Oliynik to be produced for three consecutive days for a total of 18 hours, where up to seven of those hours will be dedicated to testimony in his party-affiliated capacity.

The Court additionally orders Ms. Troyanovskaya to be produced for three consecutive days for a total of 18 hours, where up to seven hours will be dedicated to testimony in her party-affiliated capacity.

The Court sets these minimum deposition time limits in light of the number and scope of the designated PMQ topics and the seven-hour limit applicable to depositions of party-affiliated witnesses, which does not apply to PMQ testimony. The Court aims to allocate sufficient time to permit the parties to complete all necessary examinations during a single trip to London. Given the expense and logistical complexity of conducting these depositions abroad, this allocation is intended to minimize the risk of interruption, additional travel, or disputes over deposition time that could otherwise impede the efficient completion of discovery.

This order is without prejudice to Plaintiffs seeking, or the Court ordering, additional deposition time as to the PMQ topics upon an appropriate showing.

#### C. Tenute PMQ Topics

Mr. Oliynik is to appear for deposition on Topic Nos. 3-18, 22-25, and 27.

Ms. Troyanovskaya is to appear for deposition on Topic Nos. 1, 2, 17-21, 22-23, 25-27.

The Court Narrows the disputed topics as follows:

Topic 2: Tenute's wine business, including Tenute's current and future plans for that business (related to mitigation of its damages), and the extent to which Tenute's wine business competes with Miraval Provence or will purportedly benefit Miraval Provence or Chateau Miraval.

Topic 3: Any efforts by Shefler or Stoli Group, known to Tenute, to acquire an interest in Chateau Miraval or Miraval Provence prior to 2021, including in 2016, as alleged in Plaintiffs' TAC at paragraph 94.

Topic 4: Any efforts by Shefler or Stoli Group, known to Tenute, to acquire an interest in Chateau Miraval or Miraval Provence from Pitt in 2021, including through contacts at Chateau Miraval, as alleged in Plaintiffs' TAC at paragraph 95.

Topic 5: Stoli Group's decision to contact Jolie in 2021, to the extent known to Tenute, including the resulting outreach, as alleged in Plaintiffs' TAC at paragraph 96.

Topic No. 23: The role of Shefler in connection with the transaction and planning for Chateau Miraval and Miraval Provence, including all communications by Shefler with Jolie or Pitt, to the extent known to, or including Tenute.

Topic No. 25: The effects of the bankruptcy filing of Stoli Group USA, LLC, on Tenute's business and ability to provide strategic support for Chateau Miraval or Miraval Provence.

Topic No. 26: Internal communications within the Stoli Group or Tenute, reasonably known or available to Tenute, regarding the strategic importance of Chateau Miraval [in] the wine industry, including internal assessments of risks and potential returns from acquiring Nouvel or interests in Quimicum.

#### D. Nouvel PMQ Topics

Mr. Oliynik is to appear for deposition on Topic Nos. 10-36.

Ms. Troyanovskaya is to appear for deposition on Topic Nos. 1-9, 11-12, 18-36.

The Court Narrows the disputed topics as follows:

Topic No. 1: The origin of Nouvel, including its formation and purpose.

Topic No. 20: The governance of Quimicum, to the extent reasonably known to Nouvel, including proposal or actions taken by Nouvel in connection with any shareholder meeting, and the identity and role of Quimicum's manager.

Topic No. 29: The allegations in Nouvel's operative Cross-Complaint, including the factual bases therefor.

Topic No. 33: The management of Nouvel, including its past and current direct and indirect owners from 2019 to the present, including financial information Nouvel intends to offer to support valuation and damages.

Topic No. 34: The funding of Nouvel from 2009 to the present to include evidence and information related to Nouvel's Quimicum shares, shareholder loans made through Nouvel and Quimicum to Chateau Miraval, and Miraval-related transfers, distributions, and repayments, along with alter-ego, valuation, and damages allegations.

Topic No. 35: The assets of Nouvel, from 2009 to the present to include evidence and information related to Nouvel's Quimicum shares, shareholder loans made through Nouvel and Quimicum to Chateau Miraval, and Miraval-related transfers, distributions, and repayments, along with alter-ego, valuation, and damages allegations.

#### E. Oliynik Notice and Document Demands

The Court need not address the legal arguments regarding whether Mr. Oliynik may properly be compelled to appear for deposition as a party-affiliated witness. Tenute and Nouvel have offered to produce him in this capacity.

In opposition to the motion to compel Mr. Oliynik to produce documents demanded in the notice for his deposition, Defendants Nouvel and Tenute contest the breadth of the demands, and argue that *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal. App. 4th 216, 224 holds that the relevancy requirement is “a substantial obstacle to fishing expeditions.” (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal. App. 4th 216, 224.) Plaintiffs note that the quoted language does not appear in the text of the case. (Tenute Reply at 5 n.4.) The Court is likewise unable to locate the quoted language in the case.

While *Calcor* is an existing published case with relevant legal authority, the language cited does not appear in the case. The Court reminds counsel that it must verify each citation. (See *Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426 [sanctioning counsel for filing an appellate brief with fabricated quotations, and citing cases that do not discuss the topics for which they are cited]; *Shayan v. Shakib* (2025) 116 Cal.App.5th 619 [the signatory attorney is responsible for the content of the brief and subject to sanctions for inaccuracies it contains].) Here, while counsel may have quoted language that does not appear in *Calcor*, it is a published case. It also discusses when overbroad document demands can cross over into impermissible fishing expeditions. In the future, the Court will set show cause hearings where a party files briefs citing nonexistent quotes or cases.

With respect to the document demands, Nos. 1-13, Defendants do not respond to Plaintiffs' Separate Statement. Tenute and Nouvel must produce all non-privileged documents responsive to the document demands by August 7, 2026. To the extent any documents are withheld on the basis of privilege, a privilege log must be produced on August 7, 2026.

#### F. Sanctions

Plaintiffs' reply briefs in support of the motions to compel, and the Supplemental Cherlow Declarations request sanctions. While discovery sanctions are mandatory where a court grants a motion to compel discovery, a prerequisite to an award of sanctions is that the notice of motion and the accompanying declaration state an amount and facts supporting monetary sanctions. (*Weinstein v. Blumberg* (2018) 25 Cal.App.5th 316, 32.) The amount and supporting facts must appear in the papers initially filed with the motion — not supplied later. (Id.) Here, the request for sanctions first appeared in reply filings.

Sanctions are DENIED.

#### V. Conclusion

Plaintiffs' Motions to Compel Deposition of Nouvel, LLC's Person Most Qualified and Tenute Del Mondo B.V.'s Person Most Qualified, and Alexey Oliynik are GRANTED in part and DENIED in part. By no later than August 7, 2026, Defendants shall provide Plaintiffs with dates on which Ms. Troyanovskaya and Mr. Oliynik will each be available for three consecutive days of deposition to occur before September 30, 2026. Each witness shall be produced for a minimum of 18 hours of deposition.

testimony, exclusive of lunch and other reasonable breaks. Of the 18 hours, a maximum of 7 hours shall be allocated to the deposition of the witness in his or her party-affiliate capacity with the remainder of the unused time allocated to PMQ testimony.

By July 21, 2026, Mr. Oliynik will confirm whether he will be available for deposition in September. If he is not, by August 7, 2026, Nouvel and Tenute will need to provide dates for deposition prior to October 30, 2026. If he is unable to comply with this order, a motion for protective order must be filed immediately if after conferring with Plaintiffs' counsel, an agreement on accommodations can not be reached. Ms. Troyanovskaya's deposition needs to occur prior to September 30, 2026, absent stipulation of the parties.

Once the dates are set, the depositions shall take place in London, at an office location selected by Plaintiffs and identified in the deposition notices.

Tenute and Nouvel must produce all non-privileged documents responsive to the document demands in the Oliynik Deposition Notice and Requests for Production of Documents Nos. 1-13, by August 7, 2026. To the extent any documents are withheld on the basis of privilege, a privilege log must be produced on August 7, 2026.

Plaintiffs' Requests for Sanctions are DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at [email protected] indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.